

Court No. - 37

Case :- WRIT - C No. - 67932 of 2012

Petitioner :- Yogeshwar Singh

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- V.K. Misra

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Put up on 7.1.2013 as fresh.

Order Date :- 21.12.2012

VPC

Court No. - 33

Case :- WRIT - C No. - 67932 of 2012

Petitioner :- Yogeshwar Singh

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- V.K. Misra

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Sushil Harkauli,J.

Hon'ble Naheed Ara Moonis,J.

Case called out in the revised list. Sri Mahboob Ahmad, Advocate is present for the respondent. Learned counsel for the petitioner is absent.

List in ordinary course.

Order Date :- 7.1.2013

Shahnawaz

Court No. - 37

Case :- WRIT - C No. - 67932 of 2012

Petitioner :- Yogeshwar Singh

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- V.K. Misra

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Sri Mahboob Ahmad appearing for the respondents prays for and is allowed three weeks time to obtain instructions or file counter affidavit.

List in the week commencing 18th February, 2013.

Order Date :- 22.1.2013

Rakesh

Court No. - 10

Case :- WRIT - C No. - 67932 of 2012

Petitioner :- Yogeshwar Singh

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- V.K. Misra

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

The petitioner seeks quashing the recovery citation dated 24.9.2011 issued by the respondent no.2, Executive Engineer against the petitioner as well as a direction to respondent no.2 to decide the claim of the petitioner in the light of the order dated 6.11.2012 passed by the Isthai Lok Adalat in P.L.A. Case No. 48 of 2012 in the matter of quantum of electricity consumption bill issued.

We may record that Hon'ble the Apex Court in the case of **U.P.Power Corporation Ltd. & Ors. Vs. Anis Ahmad** reported in **(2013)8 SCC 491** has held that the consumer has to seek his remedy within the provision of the Electricity Supply Code, 2005/Electricity Act, 2005. The proceedings initiated before Permanent Lok Adalat are without jurisdiction.

We are of the considered opinion that if the petitioner is not satisfied with the correctness of the bills, he may seek remedy under Section 6.5 of the Electricity Supply Code, 2005.

The writ petition is dismissed with liberty as aforesaid.

Interim order, if any, stands discharged.

Order Date :- 5.2.2016

Ashish Pd.